

7. 9:00 AM CASE NUMBER: C24-01956
CASE NAME: JAMES MARITIME HOLDINGS, INC. VS. MATTHEW MATERAZO
*HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS
FILED BY:
TENTATIVE RULING:

Introduction

Before the Court is Defendant Matthew C. Materazo's ("Defendant") Motion for Judgement on the Pleadings.

As explained below, **Defendant's MJOP is taken off the Court's law and motion calendar.**

Meet and Confer

Before filing a motion for judgment on the pleadings, "the moving party shall meet and confer **in person, by telephone, or by video conference**," with the party that filed the pleading at issue. (Cal. Code Civ. Proc. § 439 (a) emphasis added.) The meet and confer shall take place at least 5 days before filing the motion. (*Id.* at (a)(2).) The moving party shall file and serve with the motion a declaration stating either that (1) the parties met and conferred and could not reach agreement, or (2) the party that filed the pleading failed to respond to the meet and confer request and/or failed to meet and confer in good faith. (*Id.* at (a)(3).)

Here, the Court continued this motion as a courtesy to provide Defendant additional time to comply with the meet and confer statute on its tentative ruling for the October 3, 2025, hearing. Defendant has ignored this Court's order and has yet to file any declaration attesting to any effort to meet and confer efforts for this motion, as required by statute. The meet and confer requirements are mandatory and must be complied with in good faith, and Defendant has failed to comply despite additional time and a court order. (CCP § 439 (a)(2).)

The Court's docket is busy, and the Court views the situation as unfair to allow Defendant to perpetually take a spot on its calendar while litigants who comply with applicable statutes and court orders are made to wait, given that Defendant ignores mandatory statutory requirements and court orders to meet and confer.

Conclusion

As provided above, **Defendant's MJOP is taken off the Court's law and motion calendar.**

8. 9:00 AM CASE NUMBER: C24-03031
CASE NAME: ISIDRO MYRICK-BUSTOS VS. STARS BEHAVIORAL HEALTH GROUP, INC.
MOTION TO STRIKE 1ST AMENDED COMPLAINT
FILED BY:
TENTATIVE RULING:

Granted. Parties stipulate to strike portions of the first amended complaint.

9. 9:00 AM CASE NUMBER: C25-00585

CASE NAME: VICTOR MARTINEZ VS. ANTIOCH DUNES HEALTHCARE, LLC

*HEARING ON MOTION IN RE: MOTION FOR SANCTIONS PER CCP 128.8 - PROVISIONAL

FILED BY:

TENTATIVE RULING:

CCP 128.7(c)(1) provides: [N]otice of motion shall be served as provided in [s]ection 1010, but shall not be filed with or presented to the court **unless**, within 21 days after service of the motion, or any other period as the court may prescribe, the **challenged paper, claim, defense contention, allegation, or denial is not properly withdrawn or appropriately corrected**. (Emphasis added.) Section 128.7 is a safe harbor statute in that a party can avoid its sanctionable actions by withdrawing the motion within the time period prescribed. It allows correction of a [] defect in a [motion] after the defect is called to the attention of the [moving party]. (*Board of Trustees v. Superior Court* (2007) 149 Cal.App.4th 1154.) A party is not entitled to sanctions pursuant to CCP 128.7 unless the target of the motion had a full 21 days to withdraw the allegedly offensive motion. (*Broadcast Music, Inc. v. Structured Asset Sales, LLC* (2022) 75 Cal.App.5th 596.) The Legislature included this safe harbor provision so that the statute would be remedial rather than punitive. (*Li v. Majestic Industry Hills, LLC* (2009) 177 Cal.App.4th 585, 591.)

Here, it does not appear that Plaintiff is utilizing CCP 128.7 as intended. The purpose of 128.7 is to allow offending motions to be withdrawn or risk sanctions by the court. CCP 128.7 does not operate retrospectively. Of course, even had Plaintiff properly notice Defendant, Defendant could have still escaped sanctions by withdrawing the motion. Indeed, Defendant did withdraw their motion after reading Plaintiff's opposition and realizing their mistake.

Plaintiff's request for sanctions pursuant to CCP 128.7 is **denied**.

10. 9:00 AM CASE NUMBER: C25-01177

CASE NAME: NEDA VALIASHRAFI VS. MANSOUR AZIZI

HEARING ON DEMURRER TO: CROSS COMPLAINT

FILED BY: VALIASHRAFI, NEDA

TENTATIVE RULING:

The demurrer to the cross complaint is continued to February 27, 2026, at 9 am. Plaintiff's counsel to notice Defense counsel. Any opposition is due by February 13, 2026. Any reply is due by February 20, 2026.

11. 9:00 AM CASE NUMBER: MSC22-00069

CASE NAME: ABBUSHI VS AHLUWALIA

HEARING ON SUMMARY MOTION

FILED BY:

TENTATIVE RULING:

Introduction

Before the Court is Defendants WALIA ENTERPRISES, LLC (also doing business as SPOONTONIC LOUNGE), AJIT AHLUWALIA, and JASMEET (erroneously identified as "JAZMEET") AHLUWALIA